

**BEFORE THE
FEDERAL MARITIME COMMISSION**

TCW, INC.,	)	
	)	
Claimant,	)	
	)	
v.	)	FMC Docket No.
	)	1966(I)
EVERGREEN SHIPPING AGENCY	)	
(AMERICA) CORPORATION &	)	
EVERGREEN LINE JOINT SERVICE	)	
AGREEMENT,	)	
	)	
Respondents	)	
	)	

Motion For Leave To File A Brief Of Amicus Curiae

Pursuant to 46 C.F.R. §502.73 and the April 26, 2021 Order for Supplemental Briefing (“April 26 Order”) issued by the Federal Maritime Commission (“FMC” or “Commission”), the National Association of Waterfront Employers (“NAWE”), hereby moves for leave to file a brief of amicus curiae supporting Respondents in the this proceeding. A copy of the brief is conditionally filed with this motion, as contemplated by 46 C.F.R. §502.73(a).

Interest of NAWE

NAWE is a trade association comprised of 27 members operating in 36 U.S. states. Many of the members of NAWE are marine terminal operators (“MTOs”). As such, they are directly and substantially affected by Commission decisions applying the U.S. Shipping Act of 1984, as amended (the “Act”), and Commission regulations, to the issues of demurrage and/or detention. The on-going interest of NAWE and its members in the issues of demurrage and detention is demonstrated by NAWE’s testimony in FMC Fact Finding Investigation No. 28 and

its submission of comments on the Notice of Proposed Rulemaking which led to the adoption of the interpretative rule now codified at 46 C.F.R. §545.5.

Desirability of NAWE's Amicus Curiae Brief

This proceeding involves a dispute between a motor carrier and an ocean carrier. However, because a decision in this case has implications for the application of section 411102(c) of the Act as well as 46 C.F.R. §545.5, NAWE believes the Commission would be well-served to consider the views of marine terminal operators subject to the statute and regulations in formulating its decision in this proceeding. In addition, the April 26 Order contemplates the submission of amicus briefs, suggesting the Commission has already decided that such briefs are desirable in this proceeding.

Conclusion

In light of the foregoing, NAWE respectfully requests that it be granted leave to file the attached amicus curiae brief in support of Respondents.

Respectfully submitted,



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June 2, 2021

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Pursuant to 46 C.F.R. §502.73 and the April 26, 2021, Order for Supplemental Briefing (“April 26 Order”) issued by the Federal Maritime Commission (“FMC” or “Commission”), the National Association of Waterfront Employers (“NAWE”), hereby submits its brief of amicus curiae supporting Respondents in this proceeding.

I. Introduction and Summary of Argument

This proceeding involves a claim by a motor carrier (“Claimant”) that the assessment of \$510 in detention charges by an ocean common carrier and/or its agent (“Respondents”) for the return of a container and chassis after the expiration of free time constitutes an unreasonable practice in violation of 46 U.S.C. §41102(c). The April 26 Order solicits briefing on three separate issues. In this brief, NAWE focuses on two of those issues – the reasonableness of Respondents’ conduct and the pass-through of the detention charges by the Claimant.

With respect to the reasonableness of the conduct, this is the first case in which the Commission is called upon to apply its interpretative rule on demurrage and detention, 46 C.F.R. §545.5 (“Interpretative Rule”). As originally proposed, the Interpretative Rule focused on the so-called incentive principle, i.e., whether demurrage/detention charges incentivized cargo interests to pick up cargo or return equipment in a timely fashion. NAWE and other commenters expressed concern that the proposed rule was unduly focused on the incentive principle to the exclusion of other considerations. NAWE cautioned that undue focus on the incentive principle would create a presumption that terminals and carriers were acting unreasonably. See, October 28, 2019 Comments of NAWE in FMC Docket No. 19-05, p. 11.

When adopting the Interpretative Rule, the Commission heeded the comments of NAWE and others who expressed this concern. In no less than four (4) places in the supplemental information accompanying the final rule, the Commission emphasized that the interpretative rule contains a non-exhaustive list of factors to be used in considering reasonableness, that the Commission would consider *any* countervailing arguments, and would determine reasonableness based on the facts of a particular case. See., e.g., 85 Fed. Reg. 29638 (May 18, 2020) at pp. 29641, 29647, and 29653. To ensure that this was in fact the case, the Commission also added 46 C.F.R. §545.5(f), which makes clear that the Commission may consider factors, arguments, and evidence in addition to those specifically listed in the rule.

Perhaps most notably, in the supplemental information accompanying the final rule the Commission stated:

Again, part of the problem is that the commenters treat a factor in the reasonableness analysis—the incentive principle—as creating a bright line rule, and they further assume the Commission would be incapable of exercising common sense when applying the factors.

85 Fed. Reg. at 29654. Notwithstanding the Commission's statements in connection with the adoption of the Interpretative Rule, the Settlement Officer applied a presumption of unlawfulness and/or failed to consider other factors in evaluating the reasonableness of the conduct at issue in this case. A commonsense application of the relevant law to the facts of this case leads to the inevitable conclusion that there is nothing unreasonable about a net detention charge of \$510 for the use of a container and chassis for more than 22 days, when the operating hours of the port were well known to Claimant and the consignee.

With respect to the pass-through of the detention charges by Claimant, this requires a finding that Claimant suffered no economic injury and is not entitled to reparations.

II. Respondents' Conduct Was Reasonable

It is NAWE's position that the assessment of detention charges by Respondents was reasonable.

In the April 26 Order, the Commission identified three aspects to the reasonableness inquiry: (a) which acts or omissions are alleged to be unreasonable; (b) whether the acts/omissions in question were normally, customary and continuous; and (c) whether the acts/omission were unreasonable based on the circumstances. NAWE addresses each of these aspects of the inquiry below.

A. Acts/Omissions Alleged To Be Unreasonable

The Commission asks for input on which acts or omissions of Respondents are alleged to be unreasonable. Based on the decision of the Settlement Officer, it appears there are two acts or omissions alleged to be unreasonable: (i) Respondents assessing \$510 in detention charges with respect to weekend days when the port was closed; and (ii) billing the motor carrier rather than

the cargo interest for those charges. This brief focuses solely on the assessment of the detention charges.

B. The Assessment Of Detention Charges Did Not Constitute A “Regulation or Practice” In Violation of Section 41102(c)

Respondents’ assessment of detention charges was not normal, customary, and continuous and therefore did not constitute a regulation or practice within the meaning of and did not violate 46 U.S.C. §41102(c).

In order to constitute a regulation or practice within the meaning of 46 U.S.C. §41102(c), the acts or omissions of the regulated entity must occur on a “normal, customary, and continuous basis.” 46 C.F.R. §545.4(b). In adopting the interpretative rule with respect to the application of 46 U.S.C. §41102(c), the Commission stated:

Beginning with the *Houben* decision in 2010 and presented in full in the Commission’s 2013 decision in *Kobel v. Hapag-Lloyd*, the Commission has held in a line of recent cases that discrete conduct with respect to a single shipment, if determined to be unjust or unreasonable, represents a violation of §41102(c). As discussed in the NPRM, this recent interpretation runs contrary to the original intent of Congress, the rules of statutory construction, and Commission precedent.

83 Fed. Reg. at 64479 (December 17, 2018) (footnotes omitted). In other words, a single, isolated instance of conduct cannot be a violation of Section 41102(c). Here, Respondents are alleged to have assessed detention charges on a single container/chassis. Accordingly, under the Commission’s interpretation of Section 41102(c), the conduct cannot be a violation.

The Settlement Officer’s conclusion that the conduct of Respondents was “normal, customary and continuous” appears to be based on the content of the UIIA Addendum of Respondents and Respondents’ apparent intention to continue to apply that Addendum. S.O. Decision at 22. The allegedly unreasonable conduct in this case involved one set of charges for one container shipment under the rather unique facts and circumstances presented in that one

instance. A determination of whether allegedly unreasonable conduct was “normal, customary and continuous” requires more than an intention to apply otherwise lawful terms of an agreement in different, future circumstances. There is no evidence in the record that Respondents actually billed detention to Claimant or any other motor carrier on other shipments when a port was closed, nor that Respondents would assess detention charges in every future circumstance, e.g., such as a circumstance in the control of Respondents. The fact that ports are normally closed on weekends, and that the UIIA Addendum permits charging demurrage after free time, does not constitute evidence that Respondents’ charge demurrage on a normal, customary, and continuous basis in all situations when a port is closed, yet that is in effect both the finding and the scope of the ruling.

Moreover, the reasonableness of assessing detention in accordance with the UIIA Addendum must be based on the individual facts of each case, which may materially differ, such as when and why free time elapsed, the nature and notice of port closure, and whether Respondents waive such charges under different conditions. It cannot be assumed that such charges ultimately will be assessed, or that the assessment of such charges (if assessed) would be unreasonable. Accordingly, Claimant has failed to meet its burden of proof because there is an insufficient factual basis upon which to conclude that Respondents’ assessment of detention charges in this matter constitutes a regulation or practice within the meaning of Section 41102(c).

C. The Assessment Of Detention Charges Was Reasonable

For the reasons set forth below, the assessment of detention charges on the facts of this case was reasonable.

1. The Conduct Was Not Normal, Customary, and Continuous

As explained in Section II.B above, Respondents' conduct has not been proven to be normal, customary, and continuous. Accordingly, it cannot be a violation of Section 41102(c).

2. The Settlement Officer Failed To Hold Claimant To Its Burden of Proof With Respect To Critical Facts In The Case

In a complaint proceeding before the Commission, the burden of proof is on the Claimant. 5 U.S.C. §556(d); 46 C.F.R. §502.203. Here, the Settlement Officer appears to have applied a presumption of unlawfulness and found critical facts in favor of Claimant without such facts being supported by any evidence in the record.

As noted above, one "fact" which appears to have been established without any proof in the record is the finding that Respondents have regularly assessed detention charges on equipment that could not be returned when a port is closed on a weekend. In actuality, there is no evidence that Claimant was assessed detention charges with respect to any other weekend days, nor is there any evidence that Respondents assessed other motor carriers detention charges for days on which ports/terminals were closed.

Another critical fact which appears to have been determined without support in the record is the reason the equipment could not be returned within the free time period (i.e., closure of consignee's plant). There is no finding of fact on this issue in Section II of the Settlement Officer's decision but, on page 24 of the decision, Claimant's allegation that the consignee's plant was shut down appears to be accepted as "fact" based solely on assertions made in Claimant's brief. This results in the Settlement Officer concluding, with no evidence beyond Claimant's allegation, that the equipment could not have been returned sooner.

If a motor carrier is alleging that equipment could not have been returned within free time due to circumstances beyond its control, it has the burden of proving the existence of those

circumstances. Here, the allegation has been accepted by the Settlement Officer with no proof or further inquiry whatsoever. When was the consignee's plant closed? For how long? For all purposes? Was the reason emergent in nature? When did Claimant learn of the closure? It is not clear at all from the Settlement Officer's decision that the alleged closure was of an extent and duration that impacted the return of the equipment. Without such evidence, Claimant has failed to meet its burden of proof and the Respondents' conduct must be considered reasonable.

Even if the alleged plant closure did impact the ability of Claimant to return the equipment within the allotted free time, NAWA believes the Commission must explain why it is more reasonable to allow the consignee and/or its motor carrier to hold on to equipment for a longer period free of charge than to allow an ocean carrier to assess detention charges to incentivize the return of the equipment at the earliest possible date. In the current conditions of high demand for containers and chassis, which result is more reasonable? Why is it unreasonable to place the risk/expense of exceeding free time on the parties best positioned to avoid that result (the consignee and its motor carrier) rather than on the ocean carrier?

3. The Closure Of The Port Was Not The Type Of Closure Contemplated By The Interpretative Rule

The purpose of the Interpretative Rule is to provide guidance as to when assessment of detention charges is more or less likely to be considered reasonable. Here, the closure of the port is not the type of closure which makes the assessment of charges unreasonable.

There appears to have been a disagreement between the parties as to whether the closure of the Port of Savannah was "temporary." The Settlement Officer ultimately found that the closure was temporary, based largely on the use of that word in an advisory notice from the Georgia Ports Authority. Settlement Officer decision at p. 26. With all due respect to the Settlement Officer and the parties, NAWA believes the characterization of the closure is less

important than whether the closure is the type of event about which the Commission was concerned in formulating the Interpretative Rule.

In adopting the Interpretative Rule, the Commission gave examples of the types of situations in which assessing detention on equipment that could not be returned would likely be considered unreasonable. These included a refusal by the terminal to accept the empty container, and uncommunicated or untimely communicated changes in container return location. 85 Fed. Reg. at 29655. NAWA believes that with respect to the return of empty equipment, the Commission was concerned primarily with those situations in which the inability to return the equipment was unknown to the consignee/motor carrier, thus making it impossible for them to alter their conduct with respect to the return of the equipment.

Whether one labels the Saturday closure of the Port of Savannah as “temporary” or something else, it was certainly known to Claimant and the consignee. Indeed, the Settlement Officer found that the Port of Savannah was closed on Saturdays beginning March 2, 2020, almost two full months before the equipment at issue in this case was delivered to the consignee. It is inconceivable that Claimant, “one of the largest asset-based transportation providers in the Southeast” (Settlement Officer decision, PF #1,) and an importer that regularly imported cargo via the Port of Savannah, did not know of this closure. Since they undoubtedly knew of the closure, they had sufficient information and advance notice to plan accordingly. Under those circumstances, it is not unreasonable for Respondents to have assessed detention, since the detention charges still served as an incentive for the prompt return of the equipment (which in turn facilitates the flow of commerce by ensuring prompt delivery of goods from or to U.S. ports through efficient utilization of the limited yard space available at U.S. marine terminals).

In this regard, the Settlement Officer's decision in the instant matter adopted an overly restrictive view of when the incentive principle is operating as intended. The decision essentially stands for the principle that if a port or terminal is closed on the day the motor carrier wishes to return equipment, then the incentive principle is defeated and assessment of detention charges is unreasonable. The breadth of that holding not only ignores the types of closures about which the Commission was concerned, but also reflects a fundamental misunderstanding about the incentive principle.

It is the prospect of having to pay detention charges for each day after the expiration of free time that serves as the incentive for the prompt return of equipment. Contrary to the Settlement Officer's decision, a detention charge is not unreasonable per se simply because the terminal was closed on the day the motor carrier wanted to return the equipment. If the closure is a normal one and/or known to the cargo interest/motor carrier, then the assessment of detention charges on days when the terminal or port is normally closed (such as weekends), continues to act as an incentive to return the equipment promptly and is reasonable. Indeed, when the terminal closure is known to the cargo interest/motor carrier (as it was here), those parties are the ones best positioned to plan their respective operations to ensure the equipment is returned before the expiration of free time and those parties should bear the risk of failing to adjust their operations appropriately. If cargo interests and motor carriers are not responsible for payment of detention charges with respect to days after the expiration of free time when the terminal is closed, then the incentive to return the equipment promptly is significantly reduced, hampering the efficient flow of cargo. This incentive process can be seen at work in this case: Respondents' position encourages Claimant to return the equipment on Friday, prior to the terminal closure. In contrast, the Settlement Officer's ruling would encourage Claimant and

others in Claimant's position to keep the equipment longer, returning it the following Tuesday and keeping the equipment out of operation for other users for an additional three days.

4. The Settlement Officer Failed To Consider Other Extenuating Circumstances

Under §545.5(f), the Interpretative Rule expressly provides that the Commission should consider factors, arguments, and evidence in addition to those specifically listed in the Interpretative Rule. Here, the Settlement Officer did not consider, or gave insufficient consideration to, the other extenuating circumstances described below.

The Settlement Officer incorrectly held the extent to which the challenged charge compensated Respondents for costs was not a factor to be considered in determining the reasonableness of the charge. However, the Commission expressly stated in adopting the Interpretative Rule that "...the rule does not preclude ocean carriers and marine terminal operators from arguing and producing evidence regarding the compensatory aspects of demurrage and detention in individual cases." 85 Fed. Reg. at 29652. Accordingly, Respondents' arguments with regard to the compensatory elements of the charges must be considered.

Another factor largely ignored by the Settlement Officer was the contractual arrangements among the parties involved with the shipment in question. In most instances, when an ocean carrier issues a through bill of lading to a U.S. inland location, the ocean carrier selects the motor carrier that will dray the container to its final destination. In this case, Claimant had a pre-existing relationship with the importer, which designated Claimant as its preferred trucker and essentially required Respondents to use Claimant for inland transportation. Claimant, a large and sophisticated enterprise, entered into a contractual arrangement with the importer and

Respondents setting forth the terms that were to apply to the provision of its services. It now seeks to challenge those terms as unreasonable.

While it is possible that a mutually agreed upon contract term could potentially be found to be unreasonable in some circumstances, NAWA believes that the relationship between the motor carrier and consignee, and the contractual relationship among the three parties, is a factor that should be considered by the Commission in assessing reasonableness in this case. The benefits Claimant derived from the preferred trucker arrangement, its willingness to enter into the tri-partite preferred trucker agreement, and the degree of control the cargo interest exercised over the selection and operation of the Claimant as motor carrier are factors that make this case more similar to a case of merchant haulage (where the cargo interest arranges the inland transportation), and weigh in favor of a finding that Respondents' conduct was reasonable.

As discussed in greater detail in Section IV *infra*, by failing to consider these extenuating circumstances, the Settlement Officer effectively created a bright-line "stop the clock" rule for port closures, something that the Commission expressly eschewed in its final rule because it "could inhibit the development of better solutions." 85 Fed. Reg. at 29654. Indeed, as detailed below, such a bright line rule would have the negative implications that the Commission was seeking to avoid in its Interpretive Rule.

III. The TCW Pass-Through Is Highly Relevant To Reasonableness And Reparations

The fact that TCW passed the detention charges on to its customer, with a mark-up, is highly relevant to this case in two respects.

First, where a Claimant has passed allegedly unlawful charges on to a third party, it by definition has not suffered any economic harm. In *The Government of the Territory of Guam, et al. v. Sea-Land Service, Inc. and American President Lines, Ltd.*, 2002 FMC LEXIS 16 (ALJ

2002), Claimants admitted that they had passed on the rates they were challenging to their own customers. The ALJ held:

The record thus demonstrates that Claimants did not suffer any economic harm from APL's rates, and instead garnered an economic benefit because they passed their shipping costs on to their customers with an added markup based on those costs.

Id. at 27. Here, Claimant passed on the detention charges it challenges as unlawful to the consignee, with a mark-up. Therefore, Claimant has not suffered any harm and is not entitled to any reparations. Moreover, the fact that the consignee apparently paid the marked-up charges imposed by Claimant is evidence that the charges imposed on Claimant were reasonable in the eyes of the consignee.

The other respect in which the pass-through is relevant relates to the direct purchaser rule, referenced in the Commission's April 26 Order. The direct purchaser rule means that parties suing for alleged overcharges can only recover reparations if they actually paid the carrier or received an assignment from the direct purchaser. *In Re Vehicle Carrier Services*, 1 F.M.C.2d 440, 445 (2019). Among the rationales underlying the direct purchaser rule is that such a rule avoids the need to inquire beyond the "first step" of the parties' transaction and the complexities involved in unraveling further transactions beyond the point of payment. The Settlement Officer's decision violates that principle and needlessly inquires into the transaction between Claimant and its customer. Given that Claimant suffered no harm and is not entitled to reparations, such an analysis is moot.

Perhaps even more importantly, the Settlement Officer has exceeded the Commission's authority in ordering the Claimant to return money to its customer. Claimant is not a regulated entity under the Act, the Commission has no authority to order it to return monies to another

unregulated entity, and the Commission has no means to enforce such an order should Claimant disregard it.

Accordingly, the Settlement Officer's award of reparations should be reversed.

IV. A Decision In Favor Of Claimant Would Be Seriously Flawed As A Matter Of Law And Policy

A determination that Respondents' conduct in this case is unreasonable would be seriously flawed as a matter of law and policy. Such a ruling would essentially establish a blanket rule that it is per se unreasonable to assess detention charges on weekends when ports/terminals are closed. There are problems with such a ruling, including:

- The ruling would be arbitrary and capricious. The ocean transportation industry has been assessing detention charges on weekends for years, and it has never been considered unreasonable. Indeed, as stated above, in its final Interpretive Rule the Commission specifically declined to adopt this type of bright line rule.¹ It is difficult to see what has changed and suddenly made long-standing conduct unreasonable.
- The ruling would be inconsistent with the Interpretative Rule because the prospect of having to pay detention charges for all days after the expiration of free time incentivizes the prompt return of the equipment. A ruling in favor of Claimant would actually provide an incentive for cargo interests to hold equipment longer where the facts are similar to this case, thus impeding the efficient flow of cargo.
- The ruling would elevate form over substance because carriers could opt to make weekends "free" and increase the amount of detention charges payable with respect to weekdays falling after the expiration of free time. This would preserve the financial status quo while providing some level of incentivization, thereby highlighting the reasonableness of Respondents' conduct in charging detention during regular weekend closures.

From the perspective of the marine terminal operator, there are two additional negative implications of a ruling in favor of Claimant as a matter of law and policy.

¹ Indeed, the Interpretative Rule did not adopt any new rules, but merely set forth a non-exhaustive list of factors to be used in applying the statute.

First, such a decision could be viewed by some as a precedent with respect to the assessment of demurrage charges by terminal operators. NAWA believes that the assessment of demurrage charges for time cargo spends on a terminal after the expiration of free time, even on days terminals are regularly closed, serves as an incentive for cargo interests to remove their cargo in a timely manner. For example, if free time expires on Thursday, the possibility of incurring charges over the weekend incentivizes the consignee to pick up the cargo on Friday, rather than waiting until the following weekend and keeping the container occupied for a minimum of three additional days. A ruling by the Commission that it is unreasonable to assess charges with respect to a day on which a terminal is routinely closed would represent a dramatic departure from existing law and would be detrimental to the operation of the marine terminal industry. In addition, demurrage for mobile equipment and demurrage for taking up terminal space are not the same. Yard space at most marine terminals is limited and not flexible. Cargo interests must be incentivized to remove their cargo from the terminal promptly to ensure space for new deliveries and to ensure the smooth and efficient movement of cargo without unnecessary interruption or delay.

Moreover, as noted above, there is potentially significant ancillary impact related to charging for failure to pick up cargo in a timely manner (demurrage). Whereas equipment is mobile, and at times the supply of equipment may have more flexible options for capacity allocation, terminal capacity is fixed and finite. Therefore, the Commission should use care to ensure that any decision issued in a case involving detention does not preclude proper consideration of different and/or additional factors in a case involving demurrage. For this reason, the Commission should also be careful to limit any decision to the facts of the specific case.

The second negative implication of the Settlement Officer's decision is the pressure it might place on ports and terminals to remain open when it is not otherwise efficient or economical to do so. If carriers are not permitted to assess detention charges on weekends when ports and terminals are closed, they may pressure ports and terminals to open on weekends. Terminals could face similar pressures from cargo interests and motor carriers. If marine terminal operators are pressured to open on weekends, this will involve substantial additional costs, particularly labor costs (assuming sufficient labor is available for additional shifts and/or permitted under labor agreements). These increased costs will ultimately be borne by the shipping public.

Marine terminal operators are dedicated to providing outstanding service to their ocean carrier customers, as well as cargo interests and motor carriers. The marine terminal operator industry has extensive experience at providing efficient and cost-effective service to its customer base. If being open additional hours made commercial and operational sense, terminals would already be open for those additional hours. The Commission should ensure that the commercial decision of how many hours to be open remains in the sound discretion of each marine terminal operator based on the needs of its customers, the region, and its own operational capabilities.

The Commission can and should protect the shipping public against unreasonable practices. However, the Commission should not interpret the Act in a manner that results in marine terminal operators being pressured to incur additional costs to be open on weekends, regardless of whether cargo volumes justify that type of schedule.

V. Conclusion

In light of the foregoing, NAWA respectfully urges the Commission to reverse the decision of the Settlement Officer, find that the assessment of detention charges was reasonable based on the facts of this case, and to dismiss this case with prejudice.

Respectfully submitted,



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June 2, 2021

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 2nd day of June, 2021, a true and correct copy of the Motion For Leave To File A Brief Of Amicus Curiae of the National Association of Waterfront Employers was served via electronic mail on the following persons:

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A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is fluid and cursive, with the first name "Wayne" and last name "Rohde" clearly distinguishable.

Wayne R. Rohde